

**Judge Mosbarger – Law & Motion – Wednesday, August 5, 2026 @ 9:00 AM  
TENTATIVE RULINGS**

**1. 22CV01506 VAIL, NATHAN ET AL v. ANDERSON BURTON CONSTRUCTION, INC ET AL**

*EVENT: Motion to Bifurcate*

The Court finds that based upon the allegations in the Second Amended Complaint, as well as those in the Cross-Complaint, bifurcation would not aid or result in the convenience of witnesses, the ends of justice, or the economy and efficiency of handling the litigation (*Code of Civil Procedure* §598), nor the furtherance of convenience or to avoid prejudice, or expedition and economy (*Code of Civil Procedure* §1048(b)). Thus, bifurcation is not warranted here and Plaintiffs/Cross-Defendants Nathan Vail and Emily Vail's Motion to Bifurcate is denied. The Court will sign the form of order submitted by Defendants/Cross-Complainants Anderson Burton Construction, Inc. and CAN Financial Corporation dba CAN Surety.

**2. 23CV01437 HENRY, MONICA v. JELLEETHER MARIE ET AL**

*EVENT: Defendant Jellether Marie Moore's Motion to Vacate Dismissal; Enforce Settlement Agreement Pursuant to Court's Retained Jurisdiction; Entry of Judgment Cancelling Quitclaim Deed as Void; Request for Judicial Notice; Request for Attorney Fees/Costs*

Defendant Jellether Marie Moore's ("Defendant" herein) Request for Judicial Notice is granted. Defendant's Motion to Vacate Dismissal; Enforce Settlement Agreement Pursuant to Court's Retained Jurisdiction; Entry of Judgment Cancelling Quitclaim Deed as Void; Request for Judicial Notice; Request for Attorney Fees/Costs is unopposed and is GRANTED in its entirety. The Court finds that the Request for Dismissal entered on January 17, 2026 is in violation of the terms of the Settlement Agreement and is hereby stricken. See, Settlement Agreement attached to the Declaration of Michael W. McCrady at Exhibit A, Paragraph 2.(d) ["...Plaintiff shall file a request for dismissal with prejudice of KAM and without prejudice of MOORE..."] Further, the Court finds that the Quit Claim Deed purporting to convey the real property from Defendant to Plaintiff dated June 6, 2025, was prematurely recorded on August 25, 2025 (Butte County Recorder Document No. 2025-0022425) in violation of the terms of the Settlement Agreement and is declared void ab initio and of no force or effect. See, Settlement Agreement attached to the Declaration of Michael W. McCrady at Exhibit A, Paragraph 2.(f) ["...The quitclaim deed shall be executed and delivered to Jamil White to hold, but not record, until such time as Henry removes Moore from the existing loan obligation such as refinancing, paying off loan, or selling Subject Property."] Lastly, the Court awards attorneys' fees and costs in the amount of \$6,612 to Defendant and against Plaintiff Monica Henry and her counsel of record, Jamil L. White/Louis White PC, pursuant to Paragraph 10 of the Settlement Agreement. The Court will sign the form of order submitted by counsel as it relates to this Motion, and the Court sets this matter for hearing on September 9, 2026 at 10:30 a.m.